



CHAPTER xxx.

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and forty-six to the thirtieth day of September one thousand nine hundred and forty-seven and for other purposes.

[12th July 1946.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Finance Consolidation) Act 1912 as amended or extended by subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and forty-six regulated by the London County Council (Money) Act 1945:

8 & 9 Geo. 6.
c. xiii.

And whereas emergency provisions were enacted in the London County Council (Money) Act 1940 (hereinafter referred to as "the Act of 1940") with reference to the expenditure of money on capital account and the lending of money by the Council for any purpose arising out of war damage in addition to the amounts specified in any annual money Act:

3 & 4 Geo. 6.
c. xxii.

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and forty-six to the thirtieth day of September one thousand nine hundred and forty-seven (hereinafter referred to as "the financial period 1946-1947") otherwise than under the said provisions of the Act of 1940 should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1946-1947 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council:

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1946-1947 are set out in Part I of the schedule to this Act:

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1946-1947 are set out in Part II of the said schedule:

1 Edw. 8. &
1 Geo. 6.
c. xlviii.

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1946-1947 are set out in Part III of the said schedule:

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1945 authorised to expend or lend but were not before the first day of April one thousand nine hundred and forty-six expended or lent:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by

and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the London County Council (Money) Act 1946 and shall be read and have effect as one with the principal Act.

2. In and for the purposes of this Act—

Interpretation.

“ the Council ” means the London County Council;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act;

“ the Act of 1940 ” means the London County Council
(Money) Act 1940;

“ the financial year ” means the period from the first day of April one thousand nine hundred and forty-six to the thirty-first day of March one thousand nine hundred and forty-seven both dates inclusive;

“ the following six months ” means the period from the first day of April one thousand nine hundred and forty-seven to the thirtieth day of September one thousand nine hundred and forty-seven both dates inclusive;

" the financial period 1946-1947 " means the financial year and the following six months; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period 1946-1947 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

4. The sums which during the financial period 1946-1947 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be

sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of Part II of the schedule in relation to such bodies and persons respectively.

Amount of further expenditure and loans which Treasury may authorise in case of insufficiency.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the financial period 1946-1947 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Periods for repayment of loans to certain bodies and persons.

6. Any money lent by the Council to governors or managers of educational institutions (including special and approved schools) or to committees of school treatment centres or to governors or committees of voluntary hospitals and hostels in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

Saving for emergency provisions of Act of 1940.

7. Nothing in this Act shall alter or affect the operation of section 7 (Emergency expenditure or lending for war damage &c.) of the Act of 1940 so far as that section relates to expenditure by the Council on capital account.

Application of Local Authorities Loans Act 1945 &c.

8. It shall not be lawful for the Council (except by the use of the Council's internal funds) to exercise for the purposes mentioned in this Act the powers of borrowing conferred by the principal Act—

8 & 9 Geo. 6.
c. 18.

- (a) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945; or
- (b) without the consent of the Treasury so long as the making of an issue of capital in the United Kingdom is prohibited without such consent.

The SCHEDULE referred to in the foregoing Act.

PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1946 TO 30TH SEPTEMBER 1947 FOR CAPITAL EXPENDITURE.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1947. (6)	Estimated Requirement for Six Months ending 30th September 1947. (7)	
		Total Parliamentary Estimate. (3)	Expenditure to 31st March 1946 (Approximate). (4)	Revised Estimate where necessary. (5)			
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London, and contributions towards cost of such improvements contributions to cost of local improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ 316,940.	£ 14,250	£
2. Local Government Act 1888 and sundry Acts relating to bridges.	Reconstruction of Deptford Creek Bridge ... Acquisition of property in connection with construction of new Wandsworth-bridge. ... Construction of new Waterloo-bridge ...	* * *	— — —	— — —	20,930 75 28,390	40,000 — —	
3. Lunacy and Mental Treatment Acts 1890 to 1930	Alterations to mental hospitals ... Carried forward ...	* ...	— ...	— ...	10,000 376,335	— 54,250	

SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1947. (6)	Estimated Requirement for Six Months ending 30th September 1947. (7)
		Total Parliamentary Estimate. (3)	Expenditure to 31st March 1946 (Approximate). (4)	Revised Estimate where necessary. (5)		
	Brought forward ...	£ ...	£ ...	£ ...	£ 376,335	£ 54,250
4. Mental Deficiency Acts 1913 to 1927.	Alterations to mental deficiency institutions.	*	—	—	7,715	3,500
5. London County Council (Tramways and Improvements) Act 1920.	Acquisition of property in connection with widening of Cable-street.	†595,500	305,688	—	3,340	—
6. London County Council (General Powers) Act 1925.	Acquisition of property in connection with the widening of the Strand between George-court and Villiers-street.	*	—	—	19,035	—
7. Poor Law Act 1930 ...	Acquisition of property additions and alterations to residential schools and children's homes and social welfare institutions.	*	—	—	59,000	40,000
8. London County Council (Money) Act 1930.	Repayment of local bonds for housing ...	*	—	—	50	—
9. London County Council (Vauxhall Cross Improvement) Act 1931.	Acquisition of property in connection with street improvements at Vauxhall Cross.	617,000	196,941	294,000	1,430	—
10. Children and Young Persons Act 1933.	Acquisition of property additions and alterations to approved schools and remand homes.	*	—	—	20,000	10,000

		†145,750	18,155	67,000	170	—
11. London County Council (General Powers) Act 1934.	Acquisition of property and execution of works in connection with Westferry-road to West India Dock-road improvement.		—	—	14,687,400	5,251,840
12. Housing Acts 1936 to 1944 and other Acts relating to housing.	Acquisition of property erection of dwellings and other purposes.	*	—	—	50,000	25,000
13. London and Middlesex (Improvements &c.) Act 1936.	Advances to persons or bodies of persons	*	—	—	33,880	20,000
14. Public Health (London) Act 1936.	Acquisition of property in connection with extension of Cromwell-road.	†1,620,000	461,576	—		
15. Public Health (London) Act 1936 and various Acts relating to main drainage.	Additions and alterations to hospitals and provision of equipment.	*	—	—	395,430	43,500
16. London County Council (General Powers) Act 1937.	Additional purification plant and other purposes.	*	—	—	131,000	40,000
17. Green Belt (London and Home Counties) Act 1938 and Open Spaces Act 1906 etc.	Acquisition of property and execution of works in connection with improvements at Notting Hill-gate and Westminster Bridge-road and the Western-avenue extension between Edgware-road and Marylebone-road.	2,107,000	220,201	—	89,580	160,000
18. London County Council (Tunnel and Improvements) Act 1938.	Contributions towards the green belt scheme contribution towards cost of swimming pool provision of additional open spaces etc.	*	—	—	327,920	30,000
19. London County Council (General Powers) Act 1939.	Acquisition of property for the improvement of the southern approach to Wandsworth Bridge and for the duplication of Blackwall Tunnel.	†3,933,250	14,962	—	23,795	—
	Acquisition of property for the improvement of the south bank of the River Thames and at Millbank.	†1,702,000	200,366	—	86,895	—
	Carried forward ...	...	...	...	16,312,975	5,678,090

SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1947. (6)	Estimated Requirement for Six Months ending 30th September 1947. (7)
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1946 (Approx- imate). (4)	Revised Estimate where necessary. (5)		
	Brought forward ...	£ ...	£ ...	£ ...	£ 16,312,975	£ 5,678,090
20. London County Council (Improvements) Act 1939.	Acquisition of property and execution of works in connection with the northern approach to Waterloo Bridge.	2,246,000	506,251	—	76,145	—
21. London Government Act 1939.	Provision of accommodation for supplies department.	*	—	—	46,350	32,550
22. Education Act 1944.	Acquisition of sites provision and equip- ment of schools and other purposes.	*	—	—	720,000	380,000
23. Town and Country Planning Act 1944.	Acquisition of property in connection with reconstruction areas.	*	—	—	500,000	250,000
24. Any other Act ...	To provide for possible expenditure for purposes authorised by Parliament (whether before or at any time during the financial period) not included in the fore- going estimates for which it may be desirable that the Council should have spending power.	*	—	—	1,000,000	500,000
					18,655,470	6,840,640

Carried forward ... £25,496,110

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes authorised by the same Act.

SCHEDULE—continued.

Brought forward £25,496,110

PART II.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and persons to whom money may be lent. (1)	During year ending 31st March 1947. (2)	During six months ending 30th September 1947. (3)
25. Governors or managers of edu- cational institutions (including special and approved schools) committees of school treatment centres and governors or com- mittees of voluntary hospitals and hostels.	£ 1,000	£ 500
26. Sundry persons under the Small Dwellings Acquisition Acts ...	10,000	5,000
Total	†11,000	†5,500

£16,500

† The provision for advances to persons or bodies of persons under the Housing Act 1936 as extended by section 6 of the Building Materials and Housing Act 1945 is included under item 12 of this schedule.

PART III.

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE.

Purposes. (1)	During year ending 31st March 1947. (2)	During six months ending 30th September 1947. (3)
27. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in Parts I and II of this schedule.	£ 2,000,000	£ 1,500,000
		£3,500,000
	Carried forward ...	... £29,012,610

SCHEDULE—continued.

Brought forward £29,012,610

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1945 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1946 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
1	Metropolis Management Act 1855 and various Acts authorising improvements and works.	£ 52,337
2	Local Government Act 1888 and sundry Acts relating to bridges.	2,334
5	London County Council (Tramways and Improvements) Act 1920.	725
9	London County Council (Vauxhall Cross Improvement) Act 1931.	1,035
11	London County Council (General Powers) Act 1934.	170
12	Housing Acts 1936 to 1944 and other Acts relating to housing.	3,967,000
13	London and Middlesex (Improvements &c.) Act 1936.	9,112
15	Public Health (London) Act 1936 and various Acts relating to main drainage.	618
16	London County Council (General Powers) Act 1937.	96,376
17	Green Belt (London and Home Counties) Act 1938 and Open Spaces Act 1906 &c.	143,429
18	London County Council (Tunnel and Improvements) Act 1938.	7,780
19	London County Council (General Powers) Act 1939.	15,280
21	London Government Act 1939	26,160
24	Any other Act	627,000
25	Loans to governors or managers of educational institutions &c.	1,500
26	Loans to sundry persons under the Small Dwellings Acquisition Acts.	1,500
27	General enlargement of spending and lending power under Treasury sanction.	2,750,000
		£7,702,356
		£7,702,356

SCHEDULE—continued.

NET AGGREGATE NEW POWERS OF EXPENDITURE OR LOAN
(FOR THE PURPOSES OF WHICH THE COUNCIL MAY
RAISE MONEY BY BORROWING OR OTHERWISE).

		£	£
For Council	{ For year ending 31st March 1947.	13,712,910	
	{ For six months ending 30th September 1947.	7,583,844	
			21,296,754
For loans	{ For year ending 31st March 1947.	8,500	
	{ For six months ending 30th September 1947.	5,000	
			13,500
			<u>£21,310,254</u>

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